

Sanjida Khatoon v Purvanchal Vidyut Vitran Nigam — recovery certificate relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 1 July 2022 · Writ-C No. 18043 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 representation; coercive action stayed eight weeks.**

HEADNOTE

A writ to quash a recovery certificate and correct an electricity bill is not decided on merits where the Electricity Supply Code, 2005 is a self-contained code and clause 6.5 supplies the mechanism for assessment and recovery grievances. Without expressing any opinion on merits, the Division Bench disposed of the petition by consent, directing that a representation filed within two weeks be considered and decided within five weeks, and stayed coercive action for eight weeks or until that decision, whichever is earlier, subject to payment of regular monthly bills.

FACTUAL SUMMARY

Sanjida Khatoon alias Sahida Begam filed a writ at Allahabad against Purvanchal Vidyut Vitran Nigam seeking certiorari to quash a recovery certificate dated 6 June 2022 and mandamus for correction of the billed amount on connection No. 8712111069930. Counsel for the licensee objected that the Electricity Supply Code, 2005 is self-contained and that a full mechanism for assessment and consequent recovery is available, so the petitioner should invoke clause 6.5.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

assessment-recovery-alternate-remedy

HOLDING

A writ challenging assessment and a consequent recovery certificate is not entertained on merits because the Electricity Supply Code, 2005 is self-contained and clause 6.5 supplies the grievance mechanism; the consumer is relegated to a time-bound representation before the competent authority, with limited stay of coercive recovery subject to paying regular monthly bills. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court accepted the licensee's objection that a writ against assessment and recovery is not the forum because clause 6.5 supplies the statutory mechanism, and disposed of the petition without deciding the bill or the recovery certificate. ¶ 1

6.5-representation-as-appropriate-remedy The petitioner was directed to move a representation before the competent authority within two weeks, to be considered and decided within five weeks, rather than have the High Court correct the bill or quash the recovery certificate. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Counsel's objection that clause 6.5 is the statutory remedy for a disputed assessment and recovery was found to have substance; the bill-correction prayer was left to that forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED AMOUNT AND VALIDITY OF THE RECOVERY CERTIFICATE DATED 6 JUNE 2022

Court expressly declined to express any opinion on the merits. ¶ 1

